

(47)

Tentative Ruling

Re: **Nannette Regua v. Sandy Romero Crane**
Superior Court Case No. 24CECG01430

Hearing Date: August 20, 2026 (Dept. 503)

Motion: by Plaintiff Nannette Regua seeking an Interlocutory Judgment for Quiet Title

Tentative Ruling:

To deny without prejudice.

Explanation:

Plaintiff Nannette Regua ("Regua" or "plaintiff") seeks an interlocutory judgment for quiet title for the property located at 1526 N. Poplar Avenue, Fresno, California

Regua has requested judicial notice for: a) Order Granting Plaintiff's Motion for Summary Adjudication in this matter, 4 entered on November 19, 2025, attached as Exhibit A; b) Anthony Romero's Disclaimer of Interest and Stipulation for Judgment filed in 6 this action on September 9, 2024, attached as Exhibit B; and c) Request for Entry of Default entered in this action on June 9, 2025, attached as Exhibit C, as to the testate and intestate successors of Manuel and Victoria Romero, all persons unknown claiming any legal or equitable right, and DOES 1-20.

The partition statutes (Code Civ. Proc., §§ 872.010-874.240) have no special provisions for obtaining default judgment, so plaintiffs must follow the procedures to obtain default in a civil action. (Code Civ. Proc., §§ 585-587.5.)

With any partition action (whether by default or by contest), the judgment proceeds in two stages, interlocutory and final. The content of the interlocutory judgment in a partition action varies according to the issues being adjudicated. In general, the judgment must set forth the ownership interests in the property or estate affected by the partition to be made, and order the partition. (See Code Civ. Proc., § 872.720, subd. (a).) In an action for partition, all parties' interest in the property may be put at issue regardless of the record title. (Code Civ. Proc., § 872.610.)

The motion at bench was not filed with the mandatory CIV-100 for parties seeking default judgment by declarations. (Cal. Rules of Court, Rule 3.1800.) Regua has not filed the required "Request for Court Judgment" form (Judicial Council Form CIV-100). This is a dual-purpose form, used for requesting both entry of default and court judgment. Regua used the form, on June 9, 2025, which only checked the "Entry of Default" box, of the dual purpose form, and thus the entry of judgment form is absent.

Furthermore, plaintiff failed to dismiss the Doe defendants, as required prior to seeking default judgment. (Cal. Rules of Court, rule 3.1800(a)(7).)

Accordingly, Regua's motion is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/18/2026.
(Judge's initials) (Date)